

CAPITAL ONE, NA v. ANTONIO GALLEGOS
Case No. CL25-04170

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed Motion to Deem Matters Admitted by Defendant ANTONIO GALLEGOS is GRANTED. Defendant GALLEGOS shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

LADY BENJAMIN P.D. CANNON, A.S.C.E. v. DAVID, et al.
Case No. CU25-01448

Demurrer by Defendants STEPHEN DAVID and MARK MITCHELL to Plaintiff's Second Amended Complaint

TENTATIVE RULING

STEPHEN F. DAVID ("DAVID") and MARK MITCHELL ("MITCHELL") demur to the second amended complaint ("2AC") including the breach of contract cause of action against DAVID; the fraud-based causes of action alleged against both DAVID and MITCHELL; and the unfair business practices cause of action alleged against both DAVID and MITCHELL. As to the fraud-based causes of action and unfair business practices cause of action, the demurrer is SUSTAINED. As to the breach of contract cause of action, the demurrer is OVERRULED.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Requests for Judicial Notice. On demurrer, the court is limited to considering the face of the complaint and any matters of which it can properly take judicial notice. (CCP § 430.30, subd. (a); 1 Edmon & Karnow (Weil & Brown 2025), [The Rutter Group 2025] Civil Procedure Before Trial, § 7:8, p. 6.) A court may take judicial notice of the contents